

Case Number: NAIH-1096-16/2023

Case Officer: [...]

Subject: Rejection of Application

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) hereby rejects the application of [...] (address: [...]; hereinafter: Applicant) in the data protection authority procedure initiated against the Municipality of Budapest, District XIII (headquarters: 1139 Budapest, Béke tér 1.) (hereinafter: Respondent), in which the Authority involved the Mayor's Office of the Municipality of Budapest, District XIII (headquarters: 1139 Budapest, Béke tér 1.; hereinafter: Mayor's Office) as a client.

No procedural costs were incurred during the authority's procedure, therefore the Authority did not make a decision regarding their bearing.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by submitting a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the court fee for the administrative lawsuit is HUF 30,000, and the subject matter is subject to fee recording rights. Legal representation is mandatory in proceedings before the Metropolitan Court.

REASONING

I. The course of the procedure and the factual background

(1) The Applicant submitted a request to the Authority on January 13, 2023, stating that on December 6, 2022, they submitted fifteen requests for public interest data to the Respondent, in which they requested that all contracts related to the reconstruction of Budapest District XIII, [...] be sent to them in electronic form, along with the date of the public procurement procedures, the materials submitted for the procurements, the dates of decisions, and the documents preparing the decisions, the impact assessment related to the reconstruction, and the dates and results of preliminary consultations with the affected parties.

(2) The Mayor's Office responded to the Applicant's data request on December 21, 2022, informing them that their data requests had been forwarded to XIII District Public Service Zrt., as the data controller.

(3) For all these reasons, the Applicant turned to the Authority, as they believe that their personal data was forwarded by the Respondent to another independent data controller without legal basis.

(4) The Applicant stated that by forwarding their data request, the Respondent severely violated their right to the protection of personal data, as their personal data was handed over to XIII District Public Service Zrt. without their consent and prior information.

(5) According to the Applicant, the Respondent violated the principle of confidentiality set out in the General Data Protection Regulation by forwarding their personal data to a data controller with whom the Respondent did not wish to share the questions posed by the Applicant.

(6) By its decision NAIH-1096-2/2023, dated March 6, 2023, the Authority contacted the Respondent and requested clarification on the purpose of the Applicant's requests for public interest data submitted on [...] and the legal basis under Article 6 of the GDPR.

1 The form NAIH_K01 serves as the basis for initiating the administrative lawsuit: NAIH_K01 form (2019.09.16.). The form can be filled out using the general form filling program (ÁNYK program). The form is available at the following link: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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(1) paragraph point on the basis of which the XIII. District Public Service Ltd. was forwarded, and also requested to provide information on the process of fulfilling the public interest data request.

(7) In response to the inquiry sent to the Respondent, the clerk of the Budapest XIII. District

Municipality (hereinafter: Clerk) replied and stated in document no. [...] /2023 that the contested procedure was not carried out by the Respondent, but by the Mayor's Office, considering that according to the documents available to him, the Applicant addressed his examined public interest data requests not to the Respondent, but to the Mayor's Office, therefore the forwarding was handled by the clerk, as the authority directing the Mayor's Office.

(8) According to the Clerk's statement, the purpose of forwarding the request for access to the public interest data subject to the current administrative procedure was to enforce the Applicant's right to access public interest data, and its legal basis was the legitimate interest under Article 6(1)(f) of the General Data Protection Regulation. According to the Clerk, the Applicant's legitimate interest in accessing the public interest data is stronger than his interest in the protection of his personal data.

(9) In addition to the above, the Clerk referred to the fact that the institution of forwarding is a mandatory general rule in public administration, which serves a client-friendly procedure.

(10) Following this, the Authority granted client status to the Mayor's Office with its decision NAIH-1096-4/2023 and called for a statement.

(11) The Mayor's Office responded on June 22, 2023, and stated that it maintains its statement dated March 22, 2023, and expressed its position that in relation to the examined data processing, the XIII. District Public Service Ltd., established by the Municipality and performing public tasks under a public service contract, qualifies as the data controller.

(12) In response to the Authority's question, the Clerk stated that the Mayor's Office did not store any contracts related to the reconstruction of [...] in any form, as they were concluded by the XIII. District Public Service Ltd. on behalf of the Municipality.

II. APPLICABLE LEGAL PROVISIONS

(13) According to Sections 60 (1)-(2) of the Infotv., in order to enforce the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may initiate a data protection authority procedure ex officio. The request for the initiation of a data protection authority procedure may be submitted in the cases specified in Article 77(1) of the General Data Protection Regulation and in point b) of Section 22.

(14) Pursuant to Article 77(1) of the General Data Protection Regulation, without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority - in particular in the Member State of their habitual residence, place of work, or the place of the alleged infringement - if the data subject believes that the processing of personal data concerning them infringes this Regulation.

(15) According to Section 60 (1) of the Infotv., in order to enforce the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may initiate a data protection authority procedure ex officio.

(16) According to Article 2(1) of the General Data Protection Regulation, this Regulation applies to the processing of personal data that is carried out by automated means or to the processing of personal data that is not automated, which forms part of a filing system or is intended to form part of a filing system.

(17) For data processing falling under the scope of the General Data Protection Regulation, according to Section 2(2) of the Infotv., the General Data Protection Regulation shall be applied with the supplements specified therein.

(18) In the absence of provisions to the contrary in the General Data Protection Regulation, the provisions of the Administrative Procedure Act shall apply to the data protection authority procedure with the deviations specified in the Infotv.

(19) According to Article 4 of the General Data Protection Regulation:

1. "personal data": any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
2. "processing": any operation or set of operations which is performed on personal data or on sets of

personal data, whether or not by automated means.

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automated operation or operations performed in any manner, including collection, recording, organization, structuring, storage, alteration or modification, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment or combination, restriction, deletion, or destruction;

7. “data controller”: a natural or legal person, public authority, agency, or any other body that determines the purposes and means of processing personal data, either alone or jointly with others; if the purposes and means of processing are determined by EU or Member State law, the data controller or specific considerations regarding the designation of the data controller may also be determined by EU or Member State law;

10. “third party”: a natural or legal person, public authority, agency, or any other body that is not the data subject, the data controller, the data processor, or persons who have been authorized by the data controller or data processor to process personal data under the direct authority of the data controller or data processor;

(20) According to Article 5(1)(e) of the General Data Protection Regulation, the processing of personal data must be lawful and fair, and conducted in a transparent manner for the data subject (“lawfulness, fairness, and transparency”);

(21) According to Article 6(1) of the General Data Protection Regulation:

The processing of personal data is lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child.

The first subparagraph (f) does not apply to processing carried out by public authorities in the performance of their tasks.

(3) The legal basis for processing under points (c) and (e) of paragraph (1) must be established by:

- a) EU law, or
- b) the national law of the Member State to which the data controller is subject.

(22) According to Section 29(1) of the Infotv., the request for access to public interest data must be fulfilled by the public authority that processes the data.

(23) According to Section 41(1) of Act CLXXXIX of 2011 on Local Governments in Hungary (hereinafter: Mötv.), the local government is a legal entity, and the provisions of the Civil Code regarding legal entities must be applied with the deviations set forth in this Act. The representative body is represented by the mayor, the president of the county assembly, and the capital's mayor. (2) The performance of municipal tasks is ensured by the representative body and its organs. The organs of the representative body are: the mayor, the capital's mayor, the president of the county assembly, the committees of the representative body, the body of the local council, the municipal office, the county government office, the joint municipal office, the clerk, and the association.

(24) According to Article 5(2) of the Convention on Access to Official Documents containing public interest data, promulgated by Act CXXXI of 2009 (hereinafter: Convention), every public authority that holds the document must address the request for access to documents containing public interest data.

If the public authority does not have the requested document containing public interest data, or does not have the authority to fulfill the data request, it must, if possible, forward the data request to the competent public authority, or inform the requester about which competent public authority they can turn to.

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(25) According to Section 60/A (1) of the Infotv., the administrative deadline in the data protection authority procedure is one hundred and fifty days, during which the time from the call for the provision of data necessary for clarifying the facts to its fulfillment is not included.

(26) According to Section 7 (2) of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), an administrative case is one in which the authority determines the client's right or obligation, resolves their legal dispute, establishes a violation of law, certifies facts, conditions, data (hereinafter collectively referred to as data), or maintains a record, or enforces its decision affecting these.

(27) According to Section 35 (2) of the Ákr., unless otherwise provided by law or government decree, the application may be submitted to the authority in writing or in person.

(28) According to Section 51 (1) b) of the Ákr., if the Authority exceeds the administrative deadline, it shall pay the applicant client an amount corresponding to the fee payable for the conduct of the procedure or for administrative authority procedures under the law on fees, or for administrative service fees (hereinafter: fee); in the absence of this, ten thousand forints, and the applicant client shall also be exempt from the payment of procedural costs.

(29) According to Section 61 (1) a) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in Sections 2 (2) and (4) in connection with the data processing operations defined in the general data protection regulation [...].

(30) Based on Article 58 (2) of the General Data Protection Regulation, in exercising its corrective powers, the supervisory authority:

- a) warns the data controller or the data processor that certain planned data processing activities are likely to violate the provisions of this regulation;
- b) reprimands the data controller or the data processor if their data processing activities have violated the provisions of this regulation;
- c) instructs the data controller or the data processor to comply with the request of the data subject regarding the exercise of their rights under this regulation;
- d) instructs the data controller or the data processor to bring their data processing operations into compliance with the provisions of this regulation - where applicable, in a specified manner and within a specified time;
- e) instructs the data controller to inform the data subject about the data protection incident;
- f) temporarily or permanently restricts data processing, including prohibiting data processing;
- g) orders the rectification or deletion of personal data, or the restriction of data processing, in accordance with Articles 16, 17, and 18, and orders the notification of the recipients to whom the personal data have been disclosed, in accordance with Article 17 (2) and Article 19;
- h) withdraws the certificate or instructs the certifying body to withdraw the certificate issued in accordance with Articles 42 and 43, or instructs the certifying body not to issue the certificate if the conditions for certification are not or are no longer met;
- i) imposes an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph; and
- j) orders the suspension of data flows to a third country or international organization.

III. Decision

III.1. General Findings

(31) The email containing the request for access to public interest data contested by the Applicant included the Applicant's name, email address, and the request for access to public interest data, which, according to the definitions in the general data protection regulation, qualify as the Applicant's personal data.

(32) The transfer of personal data, as an operation performed on personal data, is considered data

processing under Article 4 (2) of the general data protection regulation.

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III.2. Determination of the Data Controller

(33) According to the General Data Protection Regulation, the data controller is the entity that determines the purposes and means of processing personal data in a substantive manner.

(34) The Applicant submitted their request for a data protection authority procedure against the Municipality. According to Section 41 (2) of the Act on Local Governments, the Mayor's Office is the body of the Municipality's representative body, thus decisions related to it fundamentally fall within the competence of the Municipality's representative body, and within the framework of the Act on Local Governments, the representative body also decides on its establishment.

(35) According to the municipal resolution on the organizational and operational regulations of the Mayor's Office, the Mayor's Office was established by the Municipality. Since the Mayor's Office possesses the rights and obligations associated with independent legal personality as defined in the Civil Code and other regulations, it is considered an independent legal entity. Under the Act on Local Governments, the tasks related to the management of the Mayor's Office are performed by the Notary.

(36) According to Chapter 6 of the Notary's Instruction No. XXIII/4-4/2018 (II.5.) regarding the fulfillment of requests for access to public interest data available on the Mayor's Office website, the Mayor's Office is responsible for handling requests for access to public interest data managed by it. According to point 6.15 of the same chapter, if the Mayor's Office refuses to fulfill a request for access to public interest data, it must notify the applicant within 15 days. The Notary is authorized to issue the response.

(37) The Applicant sent their request for data access to the Mayor's Office at the email address jegyzo@bp13.hu.

(38) Since the Mayor's Office determined in relation to the Applicant's request that the requested data is not in its possession, it decided to forward the request.

(39) Based on the above, the Mayor's Office decided on the forwarding of the Applicant's request - including the Applicant's personal data - and is therefore considered the data controller.

(40) In relation to the contested data processing, the Respondent is not considered a data controller for the reasons stated above.

III.3. Legal Basis for the Transfer of the Applicant's Personal Data

(41) Article 6 (1) of the General Data Protection Regulation provides several alternatives for data controllers regarding the selection of legal bases.

(42) The data controller must review which legal basis it places the execution of the specific activity on before starting the data processing.

(43) The Mayor's Office stated that the transfer of data in response to the data request was carried out due to the legal interest of the data requester, the Applicant, as stipulated in Article 6 (1) (f) of the General Data Protection Regulation.

(44) According to Article 6 (1) (f) of the General Data Protection Regulation, the processing of personal data may be lawful if it is necessary for the purposes of the legitimate interests pursued by the data controller or a third party.

(45) The Applicant, as the data subject, cannot be considered a third party according to Article 4 (10) of the General Data Protection Regulation; therefore, the reference to legitimate interest cannot apply in this case. For all these reasons, the Authority does not consider the legal basis indicated by the Mayor's Office to be acceptable.

(46) Data processing may be lawful under Article 6 (1) (e) of the GDPR if it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. The Authority's position is that, as established in its consistent and established practice, public authorities or bodies performing public tasks should generally apply this legal basis, as all public law and private law relationships of these bodies, and the data processing relationships related to them, can only be subject to the performance of their public tasks, and any other qualification is excluded. Therefore, since the Mayor's Office carried out the forwarding of the Applicant's request

for access to public interest data in the exercise of its public authority and public task, the appropriate legal basis for the data transfer may be Article 6 (1) (e) of the GDPR.

(47) In this context, the GDPR provision must be applied, according to which data processing...

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(48) The basis must be determined by Union law or national law.

(49) Although the Mayor's Office referred to its obligation to transfer, since the transfer is a legal institution applicable in administrative authority procedures and the assessment of requests for access to public interest data does not fall under the scope of the Administrative Procedure Act (Ákr.), the Mayor's Office's reference to the provisions of the Ákr. was not appropriate in this case.

(50) The general rules for accessing public interest data are prescribed in Chapter III of the Information Act (Infotv.), which also does not include a transfer obligation as a requirement.

(51) At the same time, the Council of Europe's Convention on Access to Official Documents, which was incorporated into Hungarian law by Act CXXXI of 2009, is a binding regulation for all public bodies in Hungary, stipulating in Article 5(2) that the data controller must, where possible, forward the data request to the competent public authority or inform the requester about which competent public authority they can turn to.

(52) Neither of the two obligations under Article 5(2) of the Convention takes precedence, and the assessment of which solution the data controller chooses depends on the circumstances of the specific case.

(53) The Applicant did not claim in their data request that sending the data request would have adverse consequences for them regarding the personal data in question. This circumstance was only elaborated by the Applicant later in a request addressed to the Authority. Therefore, the Mayor's Office could not recognize based on the Applicant's submission that the Applicant would suffer direct disadvantages if the content of their request were known to XIII District Public Utility Ltd. The Authority also agreed with the Mayor's Office's argument that it forwarded the data request precisely to facilitate another prominent fundamental right, the Applicant's access to public interest information, which the Authority considers good practice for the fullest realization of freedom of information.

(54) Furthermore, according to the statement of the Notary, XIII District Public Utility Ltd. had already previously obtained the Applicant's name and contact details, and the Applicant did not substantiate the mere assertion of direct disadvantage with any evidence, nor did any facts or circumstances arise in this regard.

(55) For all these reasons, the Authority rejected the Applicant's request.

IV. OTHER QUESTIONS

(56) According to Section 38(2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly accessible data, and to facilitate the free flow of personal data within the European Union. According to the same paragraph (2a), the tasks and powers established for the supervisory authority in the General Data Protection Regulation are exercised by the Authority concerning entities under the jurisdiction of Hungary in accordance with the provisions of the General Data Protection Regulation and this Act.

(57) This decision is based on Sections 80-81 of the Ákr. and Section 60(1) of the Infotv.

(58) According to Section 112 of the Ákr., and Sections 116(1) and (4), as well as Section 114(1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

(59) The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27(1) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(60) The time and place for submitting the statement of claim are determined by Section 39(1) of the

Kp. Information regarding the simplified procedure and the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The Itv. exempts the initiating party from the prior payment of the fee under Section 59(1) and Section 62(1)(h).

(61) The Authority's decision becomes final upon communication according to Section 82(1) of the Ákr.

(62) The Authority exceeded the one hundred and fifty-day processing deadline set out in Section 60/A(1) of the Infotv., therefore, based on Section 51(b) of the Ákr., the Applicant is entitled to ten thousand forints.

Budapest, December 1, 2023

Dr. habil. Attila Péterfalvi

President

Professor Emeritus